

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1771 of 2018

Md. Shariful Islam Sharif

.....Convict-Petitioner.

-Versus-

The State.

.....Opposite party

Mr. Md. Abdullah Al Mahbub,
Advocates

.....For the Convict Petitioner.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

..... For the Opposite party.

Heard on 20.06.2023, 23.08.2023, 09.1.2024
and Judgment on 10.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order of conviction and sentence dated 20.06.2018 passed by the learned Additional Sessions Judge, Jamalpur in Criminal Appeal No. 104 of 2015 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 19.10.2015 passed by the learned Senior Judicial Magistrate, 1st Court, Jamalpur in C.R No. 265(1) of 2014 convicting the petitioner under section 4 of the dowry Prohibition Act,

1980 and sentencing him thereunder to suffer simple imprisonment for a period of 1(one) year should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The prosecution case, in short, is that one, Most. Sabina Yasmin (Bina) as complainant filed C.R No. 265(1) of 2014 under section 4 of the Dowry Prohibition Act, 1980 against the accused-petitioner in the Court of the learned Judicial Magistrate, Jamalpur stating, inter-alia, that on 11.10.2004 the complainant got married with the accused-petitioner by a registered kabinnama although their conjugal life was not a happy one. During their wedlock the complainant gave birth a daughter. On 16.08.2014 the accused-petitioner threatened the complainant to bring Taka 1,00,000/- as dowry for his business purpose while the complainant refused to bring it and thereafter the accused-petitioner seriously tortured mentally and physically on the victim complainant and at one stage the accused-petitioner driven out his wife (complainant) and daughter and thereafter, finally the accused-petitioner informed the complainant that if the complainant fails to bring dowry amounting to Taka 1,00,000/- as dowry from her father's house, the accused petitioner will not accept the complainant and hence, the case.

On receipt of the petition of complaint, the learned judicial magistrate took cognizance against the accused-

petitioner under section 4 of the Dowry Prohibition Act, 1980. Thereafter, the accused-petitioner obtained bail on 26.11.2014. Ultimately, the accused-petitioner was put on trial before the learned Senior Judicial Magistrate, Jamalpur to answer a charge under section 4 of the Dowry Prohibition Act to which the accused appellant pleaded not guilty and prayed to be tried.

At the trial, the complainant examined as many as 04(four) witnesses to prove her case while the defence examined none.

On completion of the trial, the learned Judicial Magistrate, 1st Court, Jamalpur by his judgment and order dated 19.10.2015 found the accused-petitioner guilty under section 4 of the Dowry Prohibition Act, 1980 and sentenced him thereunder to suffer rigorous imprisonment for a period of 1 (one) year.

Against which the present accused-petitioner preferred Criminal Appeal No. 104 of 2015 before the learned Sessions Judge, Jamalpur which was subsequently transmitted to the Court of the learned Additional Sessions Judge, Jamalpur for disposal, who by the impugned judgment and order dated 20.06.2018 dismissed the appeal and affirmed the judgment of the trial Court.

Being aggrieved by the aforesaid impugned judgment and order dated 20.06.2018 passed by the learned Additional

Sessions Judge, Jamalpur the convict-petitioner moved before this Court and obtained the present Rule.

Mr. Md. Abdullah Al Mahbub, the learned Advocate appearing for the convict-petitioner submits that during pendency of the C.R. Case No. 265(1) of 2014 the complainant opposite party No. 2 filed Paribarik Suit No. 6/2015 before the Family Court claiming dower and maintenance on 29.01.2015 and thus the criminal case under section 4 of the Dowry Prohibition Act became in-fructuous although the learned judicial Magistrate as well as the learned appellate Court below most illegally held the accused-petitioner guilty under section 4 of the dowry Prohibition Act, 1980 and sentenced him thereunder to suffer rigorous imprisonment for a period of 1(one) year, which does not deserve to be sustained. Finally, the learned Advocate referring an information slip as evidenced by “Annexure-X” to the supplementary affidavit dated 12.12.2023 submits that the convict appellant has deposited the entire dower amount in Paribarik Suit No. 6/2015 and as such, the accused-petitioner deserves to get an order of acquittal.

Ms. Kohenoor Akter, the learned Assistant Attorney-General submits that since the convict-petitioner has deposited the entire amount of dower and maintenance, she does not oppose the Rule.

Having heard the learned Advocate for the petitioner and the learned Assistant Attorney General, perused the record including the petition of complaint, deposition of witnesses and other materials on record.

On scrutiny of the record, it is found that the complainant filed the instant case under section 4 of the Dowry Prohibition Act against the accused-petitioner claiming punishment.

It further appears that during pendency of the case the complainant also filed a Family Suit being Family Suit No. 6 of 2015 claiming dower and maintenance before the Family court on 19.10.2015 in which the accused-petitioner has already been deposited entire amount of dower and maintenance in favour of the complainant opposite party No. 2 (“Annexure-X” to the supplementary affidavit dated 12.12.2023).

It further appears that the complainant to prove her case has examined in all 4 witnesses and all of them are close relatives with each other and there is contradiction in the prosecution witnesses on material points but courts below failed to consider the same from a correct angle thereby came to a wrong decision. It further appears that the complainant did not turn to contest the Rule.

Considering the facts and circumstances of the case as revealed from the materials on record, I am constrained to hold that the convict-petitioner deserves to get an order of

acquittal as he has already paid the entire amount of dower and maintenance in family suit no. 6 of 2015.

In the result, the Rule is made absolute. The impugned judgment and order of conviction and sentence dated 20.06.2018 passed by the learned Additional Sessions Judge, Jamalpur in Criminal Appeal No. 104 of 2015 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 19.10.2015 passed by the learned Senior Judicial Magistrate, 1st Court, Jamalpur in C.R No. 265(1) of 2014 against the convict petitioner, Md. Shariful Islam Sharif is set-aside and he is acquitted of the charge levelled against him.

Convict petitioner, Md. Shariful Islam Sharif is discharged from his bail bond.

Send down the lower Court records at once.